

		Respondents. Accordingly, the hearing is CONTINUED as set forth above for Petitioner to properly and timely serve the petition, notice of hearing, and any other necessary documents.” As of the May 28, 2026 hearing, Petitioner had not filed any notice of ruling, notice of hearing, or proof of service showing Respondent has received any documents filed in this case or received any notice of this hearing. Petitioner also has not filed anything demonstrating any efforts have been made to located and serve Respondents. Counsel for Petitioner, however, appeared at the May 28, 2026 hearing and requested another continuance. The Court granted the request for a continuance but issued a Minute Order stating, in part: “The court grants 1 final continuance. “The Petition to Confirm Arbitration Award is continued to 08/27/2026 at 02:00 PM in this department. “Petitioner is ordered to file a proof of service showing proper service on Respondents or declaration explaining the status and all efforts of service no later than 08/17/2026.” Petitioner has not filed any documents since the last hearing—not a new notice of hearing, not a proof of service, nothing. Based on the repeated failure to serve Respondents, as well as the failure to provide the court with any update regarding the efforts to locate and serve Respondents as the court ordered, the petition is DENIED WITHOUT PREJUDICE. Petitioner’s counsel is ordered to give notice of this ruling.
6.	<i>Azizi vs. Mobilitas Insurance Company</i> <i>2026-01558067</i>	Before the court is the amended motion of petitioner Mirwais Azizi (Petitioner) to consolidate arbitrations and compel a single joint arbitration proceeding. As set forth below, the motion is DENIED as Petitioner has failed to adequately demonstrate consolidation is appropriate or required in this case. Indeed, the showing and argument is far too conclusory and fails to even cite the court to the controlling arbitration provisions or other relevant contractual terms. By this motion, Petitioner seeks to consolidate arbitration with two separate insurance companies regarding his

	recovery for injuries he suffered in a July 18, 2024 automobile accident. The first arbitration concerns Petitioner’s uninsured motorist benefits under his automobile insurance with respondent Mobilitas Insurance Company (Mobilitas). Arbitration between Mobilitas and Petitioner is required by the terms of their insurance policy and the mandatory arbitration provision included therein under Insurance Code section 11580.2, subdivision (f). Petitioner, however, has not cited the court to or otherwise quoted the terms of the arbitration agreement included in Mobilitas’s policy. The second arbitration relates to the benefits to which Petitioner is allegedly entitled pursuant to an occupational accident insurance policy issued by respondent United States Fire Insurance Company (US Fire). The parties acknowledge there is an arbitration provision in the US Fire policy that applies to Petitioner’s claim for benefits. Petitioner, however, has not cited the court to or otherwise quoted the terms of the arbitration agreement in the US Fire policy. Code of Civil Procedure section 1281.3 authorizes a court to consolidate contractual arbitrations when three conditions are met. Specifically, section 1281.3 states, “A party to an arbitration agreement may petition the court to consolidate separate arbitration proceedings, and the court may order consolidation of separate arbitration proceedings when: [¶] (1) Separate arbitration agreements or proceedings exist between the same parties; or one party is a party to a separate arbitration agreement or proceeding with a third party; and [¶] (2) The disputes arise from the same transactions or series of related transactions; and [¶] (3) There is common issue or issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators.” Contrary to US Fire’s contention, although Insurance Code section 11580.2, subdivision (f), requires uninsured motorist arbitration, such arbitration nonetheless is treated as contractual arbitration subject to the California Arbitration Act because it is ultimately mandated by the insurance policy terms. (<i>Pilimai v. Farmers Ins. Exch. Co.</i> (2006) 39 Cal.4th 133, 141.) Accordingly, if the foregoing three conditions are established, then the court “may”—i.e., has the discretion—to consolidate an uninsured motorist arbitration with another contractual arbitration. Here, there does not appear to be much dispute the first two conditions are satisfied—i.e., (1) Petitioner is subject to
--	---

	an arbitration agreement with Mobilitas and a separate arbitration agreement with US Fire, and (2) Petitioner's disputes with Mobilitas and US Fire arise out of the same transaction—i.e., the July 18, 2024 automobile accident. Petitioner's motion turns on whether there are common issues of law or fact creating the possibility of conflicting rulings by more than one arbitrator or panel of arbitrators. Petitioner has failed to convince the court this condition is present in this case. In the moving papers, Petitioner does not even identify the common issues other than to say liability and damages from the July 18, 2024 accident should be handled in a single arbitration proceeding because that would be more efficient. That, however, paints with far too broad of a brush. The scope of uninsured motorist arbitration is limited to two issues. Insurance Code section 11580.2, subdivision (f) states, "[T]he determination as to whether the insured shall be legally entitled to recover damages, and if so entitled, the amount thereof, shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration." The statute therefore requires arbitration of two issues only: (1) whether the insured is entitled to recover against the uninsured motorist; and (2) if so, the amount of the damages. (<i>Freeman v. State Farm Mut. Auto. Ins. Co.</i> (1975) 14 Cal.3d 473, 480; <i>Bouton v. USAA Cas. Ins. Co.</i> (2008) 43 Cal.4th 1190, 1200.) The damages an insured may recover under his or her uninsured motorist coverage are the damages which the insured is entitled to recover from the uninsured motorist. (<i>Freeman, supra</i>, 14 Cal.3d at p. 480.) Any coverage issues are reserved for the courts. (<i>Bouton, supra</i>, 43 Cal.4th at p. 1201.) In terms of the arbitration with US Fire under its occupational accident insurance policy, the moving papers do not cite the court to the arbitration provision or otherwise identify the scope of the issues presented under that policy. What the court can say is that the arbitration under this policy is purely contractual; it does not have the statutory underpinnings the uninsured motorist arbitration does. According to US Fire's opposition, its policy provides benefits for injuries sustained in the course of occupational activities. (Opp. at p. 2, line 20.) The opposition goes on to explain US Fire's policy "is limited to reimbursing reasonable charges for medical services and supplies that have been ordered by a physician for the diagnosis or
--	--

		treatment of an occupational accident and deemed medically necessary. This coverage does not address tort liability. It does not compensate for pain and suffering, emotional distress, lost wages, or any other category of general or non-medical special damages. It is a medical-expense reimbursement benefit, bounded by the policy's own definitions of 'reasonable charges,' 'medically necessary,' and 'occupational accident.' The scope of an arbitration under this policy would therefore be confined to whether medical charges satisfy the policy's internal criteria for reimbursement, an inquiry that has nothing to do with the tort-based liability and damages questions at the heart of the Mobilitas arbitration." (Opp. at p. 4, lines 22 to p. 5, line 3.) Unfortunately, much like the moving papers, the opposition does not cite the court to the arbitration provision or the other relevant terms of the policy. In the reply, Petitioner argues the issues under US Fire's policy whether the charges for the treatments received are reasonable and medically necessary overlap with the medical causation, treatment necessity, and damages determinations to be made in the uninsured motorist arbitration. (Reply at p. 3, lines 19-23.) The reply, however, goes on to argue the definitions of medically necessary in US Fire's policy inappropriately reserved that determination to its own standards and medical personnel. Indeed, the reply argues consolidation should be ordered to "prevent [US Fire] from relying upon unilateral determinations of medical necessity and reasonableness to fragment or delay adjudication." That is not an appropriate basis for determining whether the common issue condition is satisfied. Petitioner simply has not shown either the liability issues or the damages issues in the two arbitrations are the same or otherwise give rise to a risk of conflicting rulings. Whether the uninsured driver is liable is different than whether Petitioner was injured in an occupational accident. Moreover, the issues regarding the tort damages potentially recoverable in the uninsured motorist arbitration do not appear to be the same as the much narrower damages issues presented in the arbitration under US Fire's policy. Based on the foregoing, the motion is DENIED. US Fire's counsel is ordered to give notice of this ruling.
7.	<i>Tran vs. City of Fountain Valley</i> 2026-01569494	Before the court is the petition by petitioner James Tran (Petitioner) for relief from the government claims